

(CCP § 377.34(a) [emphasis added].) In 2021, the Legislature added subdivision (b), stating: “Notwithstanding subdivision (a), in an action or proceeding by a decedent’s personal representative or successor in interest on the decedent’s cause of action, the damages recoverable may **include damages for pain, suffering, or disfigurement** if the action or proceeding . . . was filed on or after January 1, 2022, and before January 1, 2026.” (CCP § 377.34(b) [emphasis added].)

Plaintiffs argue that this legislative change represents a shift in California survival action law and reflects legislative intent to provide a limited window for such recovery. Plaintiffs suggest this amendment allows their survival action claim to relate back to the original Complaint.

While the amendment temporarily expanded the types of damage recoverable in survival actions, it did not extend the statute of limitations or otherwise create a new filing period for survival causes of action. It simply allowed recovery of pre-death pain and suffering in timely filed survival actions. Thus, this argument is also without merit.

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*See Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the complainant to show the court that a pleading can be amended successfully. (*Id.*)

Here, Plaintiffs seek leave to amend in the event the Court sustains any part of the demurrer. However, there are no facts that can cure the deficiencies discussed above, as the untimeliness of Plaintiffs’ survival action is determined based on the date of Decedent’s death, which is December 1, 2023. (*Okun v. Sup. Ct.* (1981) 29 Cal.3d 442, 460 [leave to amend should be denied when “there are no circumstances under which an amendment would serve any useful purpose”].) Accordingly, leave to amend is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVME2500109	GRIFFIN VS BARNETT	DEMURRER

Tentative Ruling: SUSTAINED without leave to amend since there is judicially noticeable evidence that Plaintiff was aware of property owner’s identity prior to filing the Complaint.

This is a premises liability case. On February 1, 2023, Plaintiff Tia Griffin (“Plaintiff”) was walking within the hallway of her rental unit when she stepped on unsecured, loose, raised and/or warped flooring within the unit, causing her to trip and fall. Plaintiff alleges that the unit was negligently owned, operated and maintained by Defendants Alex Barnett (“Barnett”) and Hemet Homes, LLC (“Hemet Homes”). On January 8, 2025, Plaintiff filed her Complaint against Barnett for: (1) General Negligence; and (2) Premises Liability. On January 13, 2026, Plaintiff filed an Amendment to the Complaint (“Doe Amendment”) substituting Hemet Homes for Doe 1.

Hemet Homes now demurs to the Complaint and Doe Amendment. Hemet Homes argues that Plaintiff was not genuinely ignorant as to the identity of Hemet Homes or its

relation to the subject incident based on judicially noticeable records from a prior lawsuit filed by Plaintiff against Hemet Homes.

Plaintiff argues that the court records from the prior lawsuit do not establish Plaintiff's current knowledge of Hemet Homes' identity or connection to the incident. Plaintiff argues that 1) she has been living out of state and did not have access to the documents, and 2) that the prior lawsuit was based on contractual claims under her apartment lease rather than negligence. Plaintiff argues that she filed the prior pleading in pro per and did not understand the parties' responsibilities.

In its Reply, Hemet Homes argues that Plaintiff did not produce any admissible evidence that she did not have access to her records at the time the Complaint was filed. Hemet Homes argues that the prior litigation was based on nearly identical claims and the fact that there was contract rather than torts claims is irrelevant since it is clear that Plaintiff knew that Hemet Homes was the landlord and owner of the premises.

Hemet Homes did not meet and confer prior to the initial hearing on April 9, 2026. As a result, the Court continued the hearing and ordered the parties to meet and confer. On April 16, 2026, counsel for Hemet Homes filed a Declaration indicating that he met and conferred telephonically with Plaintiff's counsel on April 16, 2026, but the parties were unable to resolve the issues informally. (Decl. of Chun, ¶ 2.) This satisfies that meet and confer requirements under section 430.41.

Hemet Homes requests judicial notice of the Complaint, including the California Residential Lease Agreement ("Lease") attached to the Complaint as an exhibit, and the First Amended Complaint in *Griffin v. Barnett*, Case No. CVSW2301165. These documents may be judicially noticed pursuant to Evidence Code §452(d), which permits judicial notice of court records. However, "although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 113.)

Pursuant to CCP §474, when the plaintiff is ignorant of the name of a defendant, he or she must state that fact in the complaint...and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly. In general, an amendment identifying a person or entity as a "Doe" defendant "relates back" to the commencement of the action for statute of limitation purposes. (CCP § 474; *Smeltzley v. Nicholso Mfg. Co.* (1977) 18 Cal.3d 932, 935). However, the Doe Amendment must satisfy procedural requirements, including that the plaintiff must allege in the original complaint that he or she is "ignorant of the name of a defendant." (CCP § 474.) A plaintiff is ignorant of the defendant's name if the plaintiff was unaware of defendant's identity or the facts giving rise to a cause of action against the defendant. (*Marasco v. Wadsworth* (1978) 21 Cal.3d 82, 88.) The relevant inquiry is what facts the plaintiff actually knew at the time the action was filed. (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 588.) Section 474 imposes no duty of inquiry and permits Doe amendments whether the plaintiff's ignorance is from "misfortune or negligence." (*Balon v. Drost* (1993) 20 Cal. App. 4th 483, 488.) However, it has been held that when a plaintiff had actual knowledge

the defendant's identity prior to filing the complaint, but has forgotten, "the plaintiff must review readily available information that discloses the defendant's identity to invoke the section 474 relation-back doctrine." (*Woo v. Superior Court* (1999) 75 Cal. App. 4th 169, 180.) Such review is not a significant burden and does not impose a duty of inquiry on plaintiffs who never knew the defendant's identity. (*Ibid.*)

The Complaint asserts that the true names of defendants sued as Does are unknown to plaintiff. (Comp, ¶ 6.) Does 1-25 are persons whose capacities are unknown to Plaintiff. (*Id.*) On January 13, 2026, Plaintiff filed the Doe Amendment naming Hemet Homes. The Doe Amendment indicates that, "[u]pon filing the complaint herein, plaintiff(s) being ignorant of the true name of a defendant and having designated said defendant in the complaint by the fictitious name of Doe 1, and having discovered the true name of the said defendant to be Hemet Homes, LLC hereby amends the complaint by inserting such true name in place and stead of such fictitious name wherever it appears in said complaint.

Hemet Homes argues that Plaintiff was not genuinely ignorant of Hemet Homes' identity as her landlord and owner/manager of the premises based on records from *Griffin v. Barnett, et al.*; Case No. CVSW2301165. The First Amended Complaint in that case lists Alex Barnett and Hemet Homes as defendants. (RJN, Ex. B.) Plaintiff, in pro per, alleged that Barnet and Hemet Homes were the owners of the premises. (*Id.* ¶ 2.) In that case, Plaintiff alleged that the floor in her rental unit was maintained in an unsafe condition. (*Id.* at ¶ 9.) The First Amended Complaint asserted nine causes of action, including one cause of action for general negligence. It is clear from this pleading that Plaintiff was aware of Hemet Homes' identity and ownership of the premises. Counsel for Plaintiff claims that Plaintiff was living out of state at the time the Complaint in the present action was filed and did not have access to her records, including the Lease. However, there is no evidence based on personal knowledge to substantiate this claim. Based on the court records from the prior litigation between the parties, it appears that Plaintiff had knowledge of the identity of Hemet Homes and its connection to the subject premises.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502919	BEARDEN VS NIJJAR	DEMURRER

Tentative Ruling: OVERRULE the demurrer.

DENY the motion to strike.

Defendant to file their answer within 30 days.

Plaintiffs Karyn Rachel Bearden, Lavennia Anette Bearden and Henry Sparks ("Plaintiffs") allege they are a family and have been tenants at 222 N Mayflower Street, Apt. 1 in Hemet ("Subject Property") since March 2019. Plaintiffs allege Defendants Michael Nijjar ("Nijjar"), Pama Management, Inc. dba IE Rental Homes and Does 1-20 ("Defendants") were "aware of, authorized, and/or ratified Plaintiffs' occupancy of the Subject Property during the term of each Defendants' ownership, management and/or control of the Subject Property."